

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 11, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26859 against Sergeant Sean Doheny, Tax Registry No. 948899. The case was conferenced on December 21, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the dismissal of the charges in return for the recommended negotiated penalty of a Command Discipline Schedule (B) and the forfeiture of TEN (10) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26859
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, DOHENY	FIRST SEAN	M.I. P	COMMAND NARCO BORO BKLYN NORTH
SHIELD NO. 3274	TAX REGISTRY NO. 948899	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2010	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Sean Doheny, on or about March 10, 2021, at approximately 0049, while assigned to 106 PCT and on duty, in the vicinity of 87-9 92nd Street, Queens County, wrongfully used force against § 87(2)(b) in that he kicked § 87(2)(b) without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Sean Doheny, on or about March 10, 2021, at approximately 0049, while assigned to 106 PCT and on duty, in the vicinity of 87-9 92nd Street, was discourteous to § 87(2)(b) in that he stated to § 87(2)(b) in sum and substance, "What about when you fucking drove for 10 miles for 20 minutes with broken tires running from us and not stopping?" without police necessity.	DISMISSED	
3 . Sergeant Sean Doheny, on or about November 18, 2021, at approximately 1130, while assigned to 106 PCT, in the vicinity of 100 Church Street, New York County, provided an inaccurate official statement to the Civilian Complaint Review	DISMISSED	

DC Baskin
FIRST DEPUTY COMMISSIONER

3/14/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

4/30/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26859
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, DOHENY	FIRST SEAN	M.I. P	COMMAND NARCO BORO BKLYN NORTH
SHIELD NO. 3274	TAX REGISTRY NO. 948899	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2010	

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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
Board in that upon being presented with video depicting him kicking § 87(2)(b) on March 10, 2021, Sergeant Doheny denied kicking § 87(2)(b)		

DC Bowles
FIRST DEPUTY COMMISSIONER

3/14/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

4/30/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner March 14, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26859 against Sergeant Sean Doheny, Tax No. 948899, with the recommendation that the Charges and Specifications against Sergeant Doheny be dismissed and that Sergeant Doheny receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Former Deputy Commissioner, Trials Paul M. Gamble reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

Edward A. Caban APR 10 2024

EDWARD A. CABAN
POLICE COMMISSIONER